

Hafiz Mohd. Said v. State of U.P. (demand remitted to clause 6.5)

High Court of Judicature at Allahabad · Division Bench · 16 July 2022 · WRIT - C No. 19505 of 2022 · **Writ disposed; petitioner relegated to clause 6.5 objection; coercive action stayed eight weeks.**

HEADNOTE

A writ seeking certiorari against a distribution licensee's demand of Rs. 1,84,104, and mandamus against coercive pursuit of that demand, was disposed of without examining merits. On the licensee's statement that an objection would be decided in a time-bound manner, the Court granted liberty to file an objection under Para 6.5 of the U.P. Electricity Supply Code, 2005 within four weeks, directed decision in accordance with law within the next four weeks after hearing, and stayed coercive action for eight weeks or until disposal of the objection, whichever is earlier.

FACTUAL SUMMARY

The petitioner, Hafiz Mohd. Said, sought certiorari to quash a demand notice dated 10 May 2022 issued by the power distribution corporation (respondent no. 2) for Rs. 1,84,104, and mandamus restraining harassment or pressure in pursuance of that demand. Counsel for the corporation stated on instructions that the petitioner could file an objection against the impugned demand, which would be decided in accordance with law within a time-bound period.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-objection-to-executive-engineer-under-6.5

HOLDING

Without expressing any opinion on merits, a writ challenging a distribution licensee's demand notice is disposed of by granting liberty to submit an objection under Para 6.5 of the U.P. Electricity Supply Code, 2005 before the licensee within four weeks; if so submitted, the objection shall be decided in accordance with law within the next four weeks after reasonable opportunity of hearing; no coercive action shall be taken on the impugned demand for eight weeks or till disposal of the objection, whichever is earlier. ¶ 3-5

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ Writ against a demand notice disposed of without merits by relegating the consumer to a Para 6.5 objection, with a time-bound decision direction and a limited stay of coercive recovery. ¶ 3-5

clause-6.5-statutory-remedy-disputed-bill Dispute over the licensee's demand of Rs. 1,84,104 is to be raised by objection under Para 6.5 rather than by writ on merits. ¶ 4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE IMPUGNED DEMAND NOTICE DATED 10.05.2022 FOR RS. 1,84,104

Court expressly declined to examine the petitioner's case on merits and left the objection to be decided in accordance with law. ¶ 4

